

were let in by § 87(2)(b), who allowed them to go upstairs to the bedroom where her husband was. Though § 87(2)(b) claimed he and his wife told the police nobody called and asked the officers why they were there, nevertheless, at 4:36, § 87(2)(b) was telling the officers "she had a verbal argument with husband over complainant talking to her mother over the phone." (DIR, enc. 11.)

At some point, the officers and the § 87(2)(b) went downstairs to the living room. Also at some point, § 87(2)(b) realized that § 87(2)(b)'s mother was in the living room. When he found her there, according to § 87(2)(b), he asked his mother-in-law what she was doing there and asked her to leave. She didn't want to, so he pushed her out the door. § 87(2)(b) walked out after her mother. The officers, at 4:47, left also, having completed a Domestic Incident Report (DIR). § 87(2)(b) reported hearing knocking some time later, but he did not answer.

According to § 87(2)(b), he began to have chest pains and went to § 87(2)(b). § 87(2)(b) For some reason, he was sent home to get his medication. At home, his wife and probably his sister-in-law, § 87(2)(b), were waiting outside, unable to get in. At this time, around 6:20, Officers Bosselman and Tomins were called back to § 87(2)(b), where they apparently found § 87(2)(b) locked out. § 87(2)(b) was leaving again and the officers followed him to his car in the parking lot, where, according to § 87(2)(b), one of the officers pulled the keys out of the ignition. The officers then went back to his house and let his wife in. § 87(2)(b) claimed the officers took the house keys off the key chain, gave them to his wife, and told her not to let him back in. Another DIR was prepared and the officers left.

§ 87(2)(b), § 87(2)(b) denied having any dispute with his wife. The current status of their relationship is unclear, however. (See Log, enc. 20.)

Analysis

§ 87(2)(b) claimed that Officers Bosselman and Tomins had no authority to stop him in his car. (Allegations A and B.) They had no warrant for his arrest and he hadn't committed a crime. However, they had been called twice to his house, had seen him push his mother-in-law out, had, on the second call, found his wife effectively evicted, and already had a Domestic Incident Report with his wife's signature on it. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) also alleged that Officer Bosselman threatened to arrest him, first, for pushing his mother-in-law, then for refusing to get out of his car. (Allegation C.) Bosselman and Tomins claimed to remember very little of this incident. Thus, when they answered that nothing (except maybe shoving the mother-in-law, Tomins, enc. 9A) happened at § 87(2)(b) that could

have caused them to arrest § 87(2)(b), they based their answer not on what they faced but on what they wrote at the time. § 87(2)(g)

§ 87(2)(g) After claiming he and his wife had no problem, he acted violently toward his wife's mother and said things that showed he had problems with both of them. § 87(2)(g)

For example, he said he asked the officers (about his wife's mother) how they could let someone in the house who didn't live there. In his interview at CCRB, he said when his wife, with her sister, asked him to open the door after he returned from the hospital, he told her, "What are you talking about? I did not return to open the door." (Tape, side A.) Additionally, he later reneged on positively identifying what officer did what and, after being asked to bring his wife to CCRB for an interview he had earlier indicated was possible, cut off conversation with CCRB entirely. (Log, enc. 20A.)

§ 87(2)(g)

§ 87(2)(b) finally § 87(2)(g) claimed that Officer Tomins broke his ignition and did other damage to his car. (Allegation D.) By April, according to § 87(2)(b), he still had not fixed his car. § 87(2)(g)

Sometimes he would mention only his ignition. (Call to CCRB, tape, side A.) Sometimes he would speak about his turn signal indicator. (Interview, tape, side A.) Other times he would say his headlights couldn't be dimmed. (Interview, tape, side A.) § 87(2)(g) he recently indicated he moved and had driven the car to his new address, were his claims that the key couldn't fit in the ignition and it couldn't be turned off, and that the car couldn't go forward. (Interview, tape, side A.) In fact, though claiming in late April that the car wasn't fixed, and in July that he would finally now fix it, in July he nevertheless also claimed that he was able to move the car because the ignition was working. Only the dimmer light wasn't working.

Ultimately, it wasn't possible to make sense of anything § 87(2)(b) said or to judge any of his complaints § 87(2)(g) including this one about damage to his car.

Note: § 87(2)(g)

Investigator: Carol Schlauch

Date: 7/25/97

Supervisor: B. Linkowski

Date: 7.28.97

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____

ENCL. 1C